

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DASHIN SIMMONS,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER FRANCO JOHNSON, Shield # 24651
and POLICE OFFICER BRETT SCHANTZ (Shield # unknown)

Defendants.
-----X

Index No. 300715-2017
Purchased _____

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

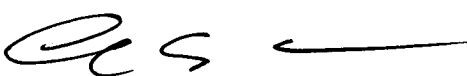
17 MAR 28 PM 2:52
COUNTY CLERK
BRONX COUNTY

RECEIVED

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
March 27 2017



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022
(212) 939-7251

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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- against -

THE CITY OF NEW YORK,
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Defendants.
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VERIFIED COMPLAINT

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Plaintiff, by his attorney, **ELLIOT S. KAY**, as and for his Verified Complaint, respectfully
alleges, upon information and belief:

1 . This is a civil litigation action seeking damages against defendants for committing acts under color of law, and depriving plaintiff of rights secured by the Constitution and laws of the United States. Defendants, while acting in their capacities as policemen of the City of New York, State of New York, deprived Plaintiff of his liberty without due process of law, thereby depriving Plaintiff of his rights, privileges and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction of this action under 42 U.S.C. § 1983, 28 U.S.C. § 1343, and 28 U.S.C. §1331.

2. The Plaintiff, **DASHIN SIMMONS**, at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.

3. At all times mentioned herein, Defendants **POLICE OFFICER FRANCO JOHNSON**,

SHIELD # 247651 ("P.O. JOHNSON") and POLICE OFFICER BRETT SCHANTZ (shield # unknown)("P.O. SCHANTZ"), at all times herein mentioned were and still are residents of the State of New York.

4. At all times herein mentioned, Defendant **CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, Defendant **NYC** and Defendants **P.O. JOHNSON** and **P.O. SCHANTZ** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

6. Defendant **NYC** is vicariously liable for the acts of Defendants **P.O. JOHNSON** and **P.O. SCHANTZ**.

7. At all times herein mentioned, Defendants **P.O. JOHNSON** and **P.O. SHANTZ** were and still are police officers employed by the New York City Police Department.

AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR FALSE ARREST AND MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS

8. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

9. Plaintiff sues all Defendants in their capacities.

10. On or about April 27, 2013, at approximately 10:40 p.m., in the vicinity of Boston Road and East 166th in Bronx County, Plaintiff was walking on a sidewalk with a few of his friends when a black car drove at a fast speed toward Plaintiff and his friends. As the black car sped towards Plaintiff and his friends, Plaintiff and his friends began to run away from the vehicle.

Shortly thereafter, members of the NYPD, including **P.O. JOHNSON** and **P.O. SCHANTZ**, approached Plaintiff, violently grabbed Plaintiff and handcuffed Plaintiff. Shortly thereafter, **P.O. JOHNSON** and **P.O. SCHANTZ** falsely accused Plaintiff of possessing a gun recovered from the ground.

11. Members of the NYPD, including **P.O. JOHNSON** and **P.O. SCHANTZ**, removed Plaintiff to a police precinct. Plaintiff remained at the police precinct for approximately one (1) day. Plaintiff was then taken to Bronx Central Booking, however, because Plaintiff was fourteen (14) years old at that time, he was taken back to the precinct. The following day, Plaintiff was taken to Family Court. At Family Court, the Judge remanded Plaintiff to custody and Plaintiff was taken to New Bridge detention facility. Plaintiff was released from custody on June 10, 2013. Plaintiff had to defend against false charges until all charges were dismissed and sealed on April 3, 2014.

12. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment were all carried out without a warrant or probable cause.

13. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

14. Prior to April 27, 2013, **NYC** and the New York Police Department (“NYPD”), developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff’s rights. It was the policy and/or custom of **NYC** to inadequately and improperly investigate citizens’ complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by **NYC**. It was the policy and/or custom of **NYC** to inadequately supervise and train its police officers, managers and employees including the respondent officers and Assistant District

Attorneys, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrest as possible without concern for the validity of those arrests. The respondents' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

**AS AND FOR A SECOND CAUSE OF ACTION FOR EXCESSIVE FORCE PURSUANT
TO SECTION 1983**

15. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

16. On or about April 27, 2013, Defendants **P.O. JOHNSON** and **P.O. SCHANTZ** used excessive force in handling the Plaintiff.

17. Solely as a result of the negligence of Defendants **P.O. JOHNSON** and **P.O. SCHANTZ**, Plaintiff was caused to suffer severe and serious personal injuries to mind and body, further, Plaintiff was subjected to physical pain, mental anguish, embarrassment, extreme shock and nervousness.

18. The amount of force used to apprehend Plaintiff was unjustified.

19. By reason of the foregoing, Plaintiff's civil rights were violated.

20. Plaintiff was severely injured and damaged and he suffers from severe nervous shock and mental anguish, physical pain and other emotional damage, some of which injuries are believed to be permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries. Plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this accident, all to Plaintiff's great damage.

21. Due to the negligence of Defendants **P.O. JOHNSON** and **P.O. SCHANTZ**, Plaintiff is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT IN VIOLATION OF HIS
CONSTITUTIONAL RIGHTS**

22. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth herein.

23. Defendants **P.O. JOHNSON** and **P.O. SCHANTZ** caused Plaintiff to apprehend and/or fear unfriendly contact.

24. A reasonable person in the same circumstances as Plaintiff would have apprehended and/or feared unfriendly contact.

25. Defendants **P.O. FRANCO JOHNSON** and **P.O. SCHANTZ** assaulted Plaintiff in violation of his civil rights.

26. Due to the Defendants' assault, Plaintiff is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING AND
SUPERVISION**

27. Plaintiff repeats and re-alleges each and every allegation above as if set forth at length herein.

28. Prior to and on or about April 27, 2013, Defendant **NYC** knew or should have known Defendants **P.O. JOHNSON** and **P.O. SCHANTZ** to be unruly and to verbally threaten and to

harass other human beings.

29. That defendant **NYC** negligently hired and trained **P.O. JOHNSON** and **P.O. SCHANTZ**, negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

30. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

AS AND FOR A FIFTH CAUSE OF ACTION FOR EGREGIOUS CONDUCT

31. That as a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

32. Plaintiffs repeat and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

33. The acts of **NYC**, **P.O. JOHNSON** and **P.O. SCHANTZ** complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

34. Plaintiff was caused to sustain serious injuries and to suffer loss of liberty, pain, shock, mental anguish, embarrassment, humiliation and anxiety.

35. That as a result of the foregoing, Plaintiff seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FAILURE
TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS**

36. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

37. As a result of the above actions, Defendant **NYC**, individually and/or vicariously, by and through its agents, servants and /or employees and officers, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff by defendant officers.

38. As a result of the foregoing, Defendant **NYC**, individually and/or vicariously, by and through their agents servants, and/or employees and officers, displayed a deliberate indifference to Plaintiff's right to be free from unreasonable searches and seizures and excessive use of force.

39. As a result of the foregoing, Defendant **NYC**, individually and/or vicariously, by and through its agents servants, and/or employees, including **P.O. JOHNSON** and **P.O. SCHANTZ** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well being.

40. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

41. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein

42. The Defendants acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, manhandling, false arrest, prolonged captivity, malicious prosecution, intimidation and public humiliation of Plaintiff.

43. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff, until all charges were dismissed and sealed on April 3, 2014.

44. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff and injury to his good name and reputation.

45. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

46. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

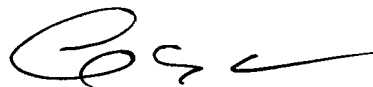
47. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs above with full force and effect as if each were more fully set forth herein.

48. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff well being, and were based on a lack of concern and ill-will towards Plaintiff.

49. Plaintiff therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: March 27, 2017
New York, NY



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022
(212) 939-7251

TO:
Zachary Carter
New York City Law Department
100 Church Street
New York, New York 10007

P.O. FRANCO JOHNSON
P.O. BRETT SCHANTZ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DASHIN SIMMONS,

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VERIFICATION

Defendants.

-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
March 27, 2017



ELLIOT S. KAY